EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 2575/08
Bülent AKMEŞE and EĞİTİM SEN.
against Turkey

The European Court of Human Rights (Second Section), sitting on 22 October 2019 as a Committee composed of:

Julia Laffranque, *President,*
Ivana Jelić,
Arnfinn Bårdsen, *judges,*
and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above application lodged on 10 January 2008,

Having regard to the declaration submitted by the respondent Government on 20 May 2019 requesting the Court to strike the application out of the list of cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. The first applicant, Mr Bülent Akmeşe is a Turkish national, who was born in 1974 and lives in Van. The second applicant, Eğitim-Sen (Education and Science Workers' Union) is a trade union. They were represented before the Court by Mr M.N. Eldem and Mr M.R. Tiryaki, lawyers practising in Ankara.

2. The Turkish Government ("the Government") were represented by their Agent.

3. The first applicant, who is a member of the trade union, Eğitim-Sen (the second applicant) complained that the imposition of a reduction in his salary as a disciplinary sanction due to the fact that he had put a post card on the union's bulletin board had constituted an interference with his right to freedom of association. The second applicant stated that the removal of the first applicant's post card from the trade union's bulletin board had breached its right to freedom of association. The applicants had relied on Articles 6, 10, 11, 13 and Article 1 of Protocol No. 1 to the Convention.

4. The case was communicated under Articles 11 and 13 of the Convention.

THE LAW

5. After the failure of attempts to reach a friendly settlement, on 20 May 2019 the Government informed the Court that they proposed a unilateral declaration with a view to resolving the issue raised by the application. In the declaration, the Government acknowledged that in the light of the Court's well-established case-law (see *Karaçay v. Turkey*, no. 6615/09, §§ 39-45, 27 March 2007), the disciplinary sanction imposed on the applicants did not satisfy the standards of Articles 11 and 13 of the Convention. In this connection, the Government pointed out that on 12 September 2010 and 13 February 2011, respectively, Article 129 of the Constitution and Section 135 of Law no. 657 on Civil Servants were amended to provide an effective remedy against disciplinary sanctions through judicial review. They further offered to pay each of the applicants 400 (four hundred) euros (EUR) to cover any pecuniary and non-pecuniary damage and a total of EUR 300 (three hundred euros) in respect of costs and expenses that may be chargeable to the applicants. They requested the Court to strike out the application.

6. The Court reiterates that Article 37 of the Convention provides that it may at any stage of the proceedings decide to strike an application out of its list of cases where the circumstances lead to one of the conclusions specified, under (a), (b) or (c) of paragraph 1 of that Article. Article 37 § 1 (c) enables the Court in particular to strike a case out of its list if:

> "for any other reason established by the Court, it is no longer justified to continue the examination of the application".

7. It also reiterates that in certain circumstances, it may strike out an application under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicant wishes the examination of the case to be continued.

8. To this end, the Court has examined the declaration in the light of the principles emerging from its case-law, in particular the *Tahsin Acar* judgment (*Tahsin Acar v. Turkey* (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI; *WAZA Sp. z o.o. v. Poland* (dec.), no. 11602/02, 26 June 2007; and *Sulwińska v. Poland* (dec.), no. 28953/03, 18 September 2007).

9. The Court has established in a number of cases, including those brought against Turkey, its practice concerning complaints about the violation of Articles 11 and 13 of the Convention (see, *Karaçay*, cited above).

10. Having regard to the nature of the admissions contained in the Government's declaration, as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the application (Article 37 § 1 (c)).

11. Moreover, in light of the above considerations, and in particular given the clear and extensive case-law on the topic, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the application (Article 37 § 1 *in fine*).

12. The Court considers that this amount should be converted into Turkish liras at the rate applicable at the date of payment, and paid within three months from the date of notification of the Court's decision issued in accordance with Article 37 § 1 of the European Convention on Human Rights. In the event of failure to settle within this period, simple interest shall be payable on the amount in question at a rate equal to the marginal lending rate of the European Central Bank plus three percentage points.

13. The Court further takes note of the fact that on 25 July 2018 the Turkish Parliament adopted Law No. 7145, which entitles applicants to request the re-opening of domestic court proceedings following the Court's decision to strike out a case on the basis of a friendly settlement or unilateral declaration. Accordingly, Article 53 § 1 (i) of the Code of Administrative Procedure, now provides for the reopening of administrative court proceedings in cases where the European Court of Human Rights decides to strike an application out of its list of cases following a friendly settlement or a unilateral declaration.

14. Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declaration, the application could be restored to the list in accordance with Article 37 § 2 of the Convention (*Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

For these reasons, the Court, unanimously,

Takes note of the terms of the respondent Government's declaration under Articles 11 and 13 of the Convention and of the modalities for ensuring compliance with the undertakings referred to therein;

Decides to strike the application out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 21 November 2019.

Hasan Bakırcı Deputy Registrar	Julia Laffranque President